

IN THE SUPERIOR COURT OF
THE STATE OF WASHINGTON
COUNTY OF KING

ZACKARIAH BENNETT,

Plaintiff,

vs.

MELVINA MANNING,

Defendant.

Case No.: 23-2-11352-7

MOTION FOR RECONSIDERATION

TO: THE HONORABLE JUDGE HAWK

I. INTRODUCTION

Plaintiff, Zackariah Bennett, respectfully submits this Motion for Reconsideration pursuant to CR 59, seeking the Court to reconsider its decision granting Defendant's Motion for Summary Judgment and denying Plaintiff's Motion to Strike and Motion for Sanctions. Plaintiff asserts that the Court overlooked significant material facts, misapplied legal principles, and was misled by misrepresentations made by Defendant's counsel, Nancy Gass, during the summary judgment hearing.

II. LEGAL STANDARDS FOR RECONSIDERATION

Under CR 59, a court may reconsider its decision based on new evidence, errors of law, or other grounds that justify relief. Courts have broad discretion to reconsider prior rulings to correct errors and prevent injustice.

- **Legal Reference:** State v. Ellis, 178 Wn.2d 693, 310 P.3d 121 (2013) [Courts possess inherent authority to reconsider decisions to rectify errors and serve the interests of justice].

III. GROUNDS FOR RECONSIDERATION

A. Failure to Consider Plaintiff's Opposition:

1. Overlooked Arguments and Evidence:

- The Court's decision did not reflect consideration of Mr. Bennett's opposition to the summary judgment motion. His opposition detailed significant factual disputes and issues, particularly about misrepresentations, fraud, and spoliation of evidence.

- **Evidence Submitted:** Plaintiff's opposition included crucial elements such as the fraudulent editing of declarations, misrepresented facts, and spoliation of critical -

- **Legal Reference:** CR 56(c), which states summary judgment is appropriate only when there is no genuine issue as to any material fact.

- **Case Law:** Lambert v. Morehouse, 68 Wn. App. 500, 843 P.2d 1116 (1993) [Summary judgment is improper where reasonable minds could differ as to the facts and inferences].

B. Misrepresentations Made by Opposing Counsel

1. Misrepresentation of Alleged Prior Adjudication:

- Ms. Gass claimed all matters had been previously adjudicated. However, none of Mr. Bennett's claims have been litigated or addressed. The Defendant has failed to provide any evidence that the claims against her have been adjudicated.

2. Misrepresentation of Appeal Status:

- During the summary judgment hearing, Ms. Gass stated that the appeal of the 2022 DVPO was "denied." The reality is that the appeal was dismissed as moot and is currently pending the Supreme Court's decision on whether to review the case.

- **Legal Reference:** RCW 26.50 regarding appeals and protection orders, and RAP 12.7, which discusses the appellate court's authority to dismiss cases as moot.

- **Case Law:** Wessa v. Watermark Paddlesports, Inc., Case No. C06-5156 FDB (W.D. Wash. May. 22, 2006) [Acknowledging the relevance of pending appeals and the implications of dismissals as moot].

IV. PREJUDICIAL ERRORS AND NEWLY DISCOVERED EVIDENCE

A. Newly Discovered Evidence:

- Through discovery in this cause, Mr. Bennett was able to obtain a portion of the security video that Mrs. Manning had withheld in the DVPO cause, which is currently awaiting review and repeatedly referenced by Ms. Gass in this matter. Upon obtaining and analyzing this video, it was discovered to be a 93-second cell phone recording from over 30 minutes of original footage. This was after Mr. Bennett had requested that the original video be shown, declaring it would exonerate him of all claims against him. Confronted with this evidence, Ms. Gass provided proof that Mrs.

Manning allowed the rest of the footage to be auto-deleted while preserving only the 93-second clip. This new evidence significantly impacts the understanding of the facts.

- **Legal Reference:** *CR 60(b)(3)* provides for relief from a judgment or order based on fraud, misrepresentation, or other misconduct by an adverse party.

- **Case Law:** *In re Marriage of Leslie*, 112 Wn. 2d 612, 772 P.2d 1013 (1989) [Relief from judgment can be granted if new evidence is discovered that could not have been found with due diligence in time to move for a new trial].

B. Misapplication of Legal Standards & Incorrect Application of Statutes:

- The Court applied RCW 7.105.010(35)(a) instead of RCW 26.50.010, disregarding the effective date and applicability of the legislation.

- **Legal Reference:** *RCW 26.50.010* (Domestic Violence), *RCW 7.105.010* (Definitions related to protection orders), and the **Washington Session Laws of 2022 ch. 268**, which specify effective dates for new statutes.

- **Case Law:** *State v. Beaver*, 184 Wn.2d 321, 358 P.3d 385 (2015) [Application of statutes must respect delineated effective dates to avoid retroactive enforcement without clear legislative intent].

V. ARGUMENT

A. The Court's Evaluation of Credibility:

- The Court's judgment did not fully consider the contradictions and inconsistencies within the Defendant's submissions, objections made to false/misleading statements, and the evidence indicating potential fraudulent activities. Proper consideration of these factors is required for a fair adjudication.

B. Legal and Procedural Errors:

- The misapplication of legal standards, failure to address material facts, and the mishandling of discretion concerning objections, evidence, burden shifts, and contested facts evident at the hearing on summary judgement, merit reconsideration under CR 59.

VI. SPECIFIC CLAIMS UNADDRESSED

1. Defamation of Character:

- Claims regarding public allegations of domestic violence and harm to Plaintiff's reputation were not addressed by the Court.
- **Legal Reference:** *RCW 4.24.350* provides for a civil action for libel or slander.
- **Case Law:** *Mark v. Seattle Times*, 96 Wn.2d 473, 635 P.2d 1081 (1981) [Defamation claims require proving falsity, unprivileged communication, fault, and damages caused].

2. Intentional Infliction of Emotional Distress (IIED):

- Claims of emotional trauma caused by Defendant's actions and statements in the presence of Plaintiff's children were unaddressed.
- ****Legal Reference:**** Elements of IIED under Washington law include extreme and outrageous conduct, intentional or reckless infliction of emotional distress, and actual severe emotional distress.
- **Case Law:** *Kloepfel v. Bokor*, 149 Wn.2d 192, 66 P.3d 630 (2003) [IIED requires the defendant's conduct to be so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency].

3. Fraud:

- **On the Court:** Mrs. Manning made false, unsubstantiated claims of child abuse, abandonment, and drug use to improperly obtain an order of protection and retain the minor child [TB] in Washington State, in defiance of the natural parents' revocation of permission and demand for the child's return to Colorado.
- **On Mr. Bennett:** Using the improperly obtained order of protection, Mrs. Manning convinced Mr. Bennett's Colorado probation officer to deny his request for travel to Washington State to attend the Show Cause hearing set by Mrs. Manning for "emergency custody," effectively preventing him from physically appearing and

making it financially impossible for Mr. Bennett to obtain counsel in Colorado to fight probation revocation.

- **Voluntary Transfer of Parental Rights:** Five years after the second fraud, Mr. Bennett made a mistake that led to his imprisonment in Washington. Mrs. Manning convinced Mr. Bennett that his ex-wife had filed paperwork to take TB to Colorado and promised Mr. Bennett visitation and communication via a communication agreement provided by her attorney. As soon as Mr. Bennett signed the agreement, all communication with TB ceased. It was later discovered that there was an agreement between Mrs. Manning and the ex-wife that if Mr. Bennett was never allowed to see or speak to TB again, she wouldn't contest Mrs. Manning's custody. In 2015, Mrs. Manning offered reunification therapy but refused to authorize the counselor to speak with Mr. Bennett, effectively ending any communication.

- **Case Law:** *Adams v. King County*, 164 Wn.2d 640, 192 P.3d 891 (2008) [Fraud claims must specify a misrepresentation of material fact, knowledge of its falsity, intent to induce reliance, justifiable reliance by the plaintiff, and resulting damages].

4. Perjury:

- Claims of perjury based on knowingly false statements under oath might not have been explicitly ruled on by the Court.

- **Legal Reference:** *RCW 9A.72.020* defines perjury in the first degree.

- **Case Law:** *State v. Jessup*, 31 Wn. App. 304, 641 P.2d 1185 (1982) [Perjury claims necessitate clear evidence that false statements were made under oath].

5. Abuse of Process and Due Process Violations:

- Plaintiff's claims regarding the misuse of legal procedures might not have been discussed in sufficient detail. Mrs. Manning obtained the 2008 judgment by order of default, with Mr. Bennett never afforded an opportunity to speak on the matter. Mrs. Manning abused the legal system in Washington to obtain a restraining order on false pretenses, and used it to mislead Colorado Probation which prevented Mr. Bennett from attending the show cause hearing, from being able to be heard, and from regaining physical custody of TB in violation of due process and parental rights.

- **Legal Reference:** An action for abuse of process involves misuse of the process for an ulterior purpose.

- **Case Law:** *Sea-Pac Co. v. United Food & Comm. Workers*, 103 Wn.2d 800, 699 P.2d 217 (1985) [Abuse of process requires both an ulterior purpose and a willful act not proper in the regular conduct of the proceeding].

6. Custodial Interference:

- Claims of damage due to unlawful custodial interference prior to the termination of parental rights from 2008 to 2013 were overlooked. Mrs. Manning withheld Mr. Bennett's infant son unlawfully, in violation of the agreed upon visit, and after repeat demands for his return home. Instead of complying, Mrs. Manning sought and obtained a restraining order - on false pretense - seeking emergency custody of TB. Mrs. Manning requested that Mr. Bennett have no visitation with TB, claimed Mr. Bennett was threatening to remove TB from Washington, while simultaneously, in complete contradiction, claimed Mr. Bennett had abandoned TB to her, which was material in order for her to gain emergency custody according to RCW 26.27.231(1) and the UCCJEA. Jurisdiction should have been declined according to RCW 26.27.271(1).

- **Legal Reference:** *RCW 9A.40.060* outlines elements of custodial interference. *RCW 26.27.021(1)* defines abandoned. *RCW 26.27.231*, *RCW 26.27.241*, *RCW 26.27.271* outline temporary emergency jurisdiction, opportunity to be heard, and when jurisdiction should be declined by reason of conduct.

- **Case Law:** *State v. La Mere*, 119 Wn.2d 696, 836 P.2d 158 (1992) [Custodial interference involves taking, enticing, or keeping from lawful custody a child entitled to be with another person].

7. Tortious Interference with Parental Rights:

- Defendant withheld TB after Plaintiff requested his return, several months before obtaining a custody order. Plaintiff had intact parental rights from 2008-2013 during Mrs. Manning's prevention of access and communication with TB. Additionally, claims of abuse of legal process and fraud should be scrutinized based on historical misrepresentations and procedural manipulations by Mrs. Manning.

- **Legal Reference:** *RCW 26.09.260* regarding the modification of parenting plans or custody orders.

- **Case Law:** *Wyatt v. McDermott*, 283 Va. 685, 725 S.E.2d 555 (2012) [Tortious interference with parental rights includes actions aimed at disrupting the parent-child relationship].

- *Troxel v. Granville*, 530 U.S. 57 (2000) [Parents have a fundamental right to control the upbringing of their children, and a law that allows anyone to petition a court for child visitation rights over parental objections unconstitutionally infringes on this right. Courts may not use a freestanding "best interest of the child" standard to overturn parental rights].

VII. RELIEF REQUESTED

For the reasons set forth above, Plaintiff Zackariah Bennett respectfully requests that this Court:

1. Vacate the Order Granting Summary Judgment: Reconsider the decision to grant summary judgment in favor of the Defendant and deny the Defendant's Motion for Summary Judgment.

2. Grant the Plaintiff's Motion to Strike and for Sanctions: Recognize the misrepresentations and misconduct by the Defendant's counsel and impose appropriate sanctions.

3. Allow the Case to Proceed to Trial: Permit all unresolved claims to be fully litigated and adjudicated at trial.

Furthermore, Plaintiff requests any other relief that the Court deems just and proper under the circumstances.

VIII. CONCLUSION

In light of the material facts overlooked, the legal principles misapplied, and the misrepresentations made by Defendant's counsel, Plaintiff respectfully urges this Court to reconsider its prior rulings. The interests of justice and fair play demand a thorough reexamination of the evidence and arguments presented.

DATED this 6th day of July 2024.

Respectfully submitted,

Zackariah Bennett

A handwritten signature in black ink, appearing to read 'Zackariah Bennett', written in a cursive style.